

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC HOLDINGS,
LLC,
Plaintiff,

vs.

Case No. 2020-CC-001316

SANDRA JEANNE ROBERTS AND
ANY UNKNOWN TENANT(s),
Defendants.

_____/

**SWORN MOTION FOR FINAL DEFAULT JUDGMENT FOR
DAMAGES, LIEN ENFORCEMENT AND JUDICIAL SALE**

COMES NOW the Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, by and through the undersigned counsel, and moves this Court to grant final judgment against Defendants, SANDRA JEANNE ROBERTS and ANY UNKNOWN TENANT(s), in the above-styled cause and Plaintiff alleges that there are no disputed facts or law and the undisputed facts and law are as follows:

1. Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, filed suit under Florida Statute §723.061(1)(a), for removal of a mobile home park lot tenant, for possession of the Plaintiff's real property, for damages and to enforce Plaintiff's landlord lien pursuant to Florida Statutes §713.691 and §713.77.
2. The Plaintiff is a mobile home park operating in Manatee County, Florida pursuant to Florida Statutes Chapter 723.
3. Plaintiff, as landlord, leased to Defendant, SANDRA JEANNE ROBERTS, Lot #120, of the above-stated mobile home park at a monthly rental fee of \$597.00. The Defendant owes lot rent for

the months of January and February 2020 in the sum of \$1,329.00 pursuant to the Rental Agreement and for all months subsequent.

4. Defendant, SANDRA JEANNE ROBERTS, is in default of the Rental Agreement with Plaintiff by failure to pay the total sum of \$1,329.00 as of February 6, 2019 and for all months subsequent up to the date of judgment..

5. On February 6, 2020, Plaintiff served by posting on Defendant(s), SANDRA JEANNE ROBERTS, a Five-Day Notice of Termination of Tenancy for Non-payment of Rent for the rent due at that time. A copy of this Notice is attached and marked as Plaintiff's Exhibit A.

6. On February 6, 2020, Plaintiff also mailed a Five-Day Notice of Termination of Tenancy for Non-payment of Rent to SANDRA JEANNE ROBERTS in care of by WAYNE FLEURY at 8 Pine Grove Road, Westford, Massachusetts 01886. This person is believed to be the son of the Defendant. A copy of the certified receipt is attached and marked as Plaintiff's Exhibit B.

7. On February 27, 2020 Plaintiff delivered by Certified Mail/Return Receipt Requested the Five Day Notice of Termination of Tenancy to Defendant SANDRA JEANNE ROBERTS at 900 9th Avenue East, Lot #120, Palmetto, FL 34221 in compliance with Fla. Stat §723.061(4) which requires all notices pertaining to terminations of tenancy be sent to the mobile home owner and tenant and occupant by certified or registered mail, return receipt requested. A true copy of the envelope with certified mail receipt is incorporated into this complaint as Exhibit C.

8. Defendants SANDRA JEANNE ROBERTS and ANY UNKNOWN TENANT(s), have failed to make the payment of past due rent, and late fees within five (5) days of delivery of the Notice and continue to refuse to pay the amounts due and owing to Plaintiff.

9. There are unpaid rent, late fees and water/sewer fees owed by the Defendant to the Plaintiff arising out of the failure of the Defendant to pay lot rent and utilities.

10. On belief, the owner of the mobile home, SANDRA JEANNE ROBERTS, passed away in the residence known as 900 9th Avenue East, Lot 120, Palmetto, Florida 34221 on or about July 6, 2018 as evidenced by the Death Certificate previously filed herein.

11. A default has been taken against Defendant SANDRA JEANNE ROBERTS and any unknown tenants by the Clerk of the Court on March 16, 2020.

12. A judgment for possession of the premises was granted by the Court on April 10, 2020.

13. Plaintiff came to be in possession of the premises in February of 2020 when other residents in the mobile home moved out and gave the keys to the mobile home to Plaintiff. This perfected Plaintiff's lien pursuant to Fla. Stat. §713.77.

14. The Plaintiff is entitled to recover from the Defendant, *in rem*, because service of process was procured by posting only. The amount of unpaid rent, late rent fees, water and sewer and late water and sewer fees as of the date of filing this motion are the sum of \$ 2437.39 which sum is broken down as follows:

Rent	\$ <u>1926.⁰⁰</u>
Late Rental Fees	\$ <u>180.⁰⁰</u>
Water/sewer Fees	\$ <u>166.39</u>
Late water sewer fees	\$ <u>165.00</u>

15. The double wide mobile home owned by Defendant, SANDRA JEANNE ROBERTS is a 1972 Manac Inc. Mobile Home, VIN No. 0622687926A, Title No. 0005447101 and VIN No. 0622687926B, Title No. 0005447102 located on Lot #120 of the property leased by the Plaintiff to her, while she was alive.

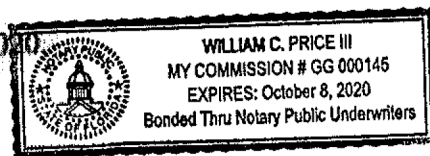
STATE OF FLORIDA
COUNTY OF MANATEE

BEFORE ME, the undersigned, authorized by the laws of the State of Florida to administer oaths, personally appeared KATHY HOFF, who is personally known to me or has produced as identification, and states that the foregoing facts are true to her best knowledge and belief.

Kathy Hoff
KATHY HOFF

SWORN TO AND SUBSCRIBED on this 14 day of April, 2020

William C. Price III
NOTARY PUBLIC
My Commission expires:



16. By operation of this perfected lien, Plaintiff is entitled to sell the property in its possession, namely, the mobile home identified above.

17. Upon the Plaintiff being determined to be entitled to judgment in this Complaint, Plaintiff is entitled to a landlord's lien against said mobile home to enforce its judgment against Defendant for unpaid rent, utility bills, late fees, maintenance fees, court costs and a reasonable attorney's fee for the pursuit of this eviction and for related relief.

18. Pursuant to Florida Statutes §45.031, Plaintiff is entitled to a judicial sale of the personal property, that is, the mobile home to satisfy its judgment against Defendants.

19. Pursuant to Florida Statutes §723.068, Plaintiff is entitled to an award of attorney's fees and costs by virtue of prevailing in this action to enforce rights arising out of a mobile home lot rental agreement. Plaintiff attaches an Affidavit of Attorney's Fees, as Exhibit D, and seeks an award of \$ 2040.00, along with an Affidavit of Costs, attached as Exhibit E seeking an award of \$ 726.20.

20. The Plaintiff is entitled to credit toward the purchase of said mobile home in the sum representing all of Plaintiff's judgment against Defendants, SANDRA JEANNE ROBERTS, all costs of this proceeding and reasonable attorney's fees.

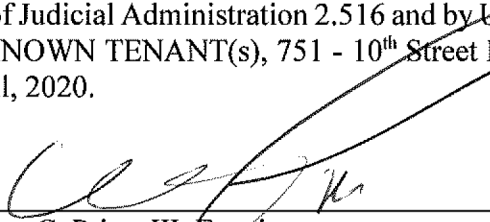
WHEREFORE, Plaintiff demands judgment for damages *in rem*, costs, and attorney's fees in the total sum of \$5203.49 for a judgment entitling Plaintiff to enforce its judgment by judicial sale of the personal property of Defendant, and an order setting the judicial sale of Defendant's property, to-wit:

1972 Manac Inc. Mobile Home, VIN No. 0622687926A, Title No. 0005447101 and VIN No. 0622687926B, Title No. 0005447102

pursuant to Florida Statute §45.31, and to reserve jurisdiction to enter such further orders as are necessary to effectuate this judgment.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing **SWORN MOTION FOR FINAL DEFAULT JUDGMENT FOR DAMAGES, LIEN ENFORCEMENT AND JUDICIAL SALE** has been furnished in accordance with Florida Rule of Judicial Administration 2.516 and by U.S. Mail to: SANDRA JEANNE ROBERTS and ANY UNKNOWN TENANT(s), 751 - 10th Street East, Lot #120, Palmetto, Florida, 34221 this 14th Day of April, 2020.



William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Pleadings@wcpicelaw.com
Attorney for Plaintiff